

## **WEBSITE SERVICES & COLLABORATION AGREEMENT**

This Website Services & Collaboration Agreement ("Agreement") is entered into as of 12/17/2025, by and between:

**Client:** Melissa Hathaway ("Client")

**Property/Business Name:** The Birdhouse on Meridian

and

**Service Provider:** Jackson Ingenito ("Developer")

**Business Name:** Olive Branch Studio LLC

**Address:** 13321 W State Road 32, Yorktown IN 47396

Client and Developer may be referred to individually as a "Party" and collectively as the "Parties."

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## **1. PURPOSE OF AGREEMENT**

The purpose of this Agreement is to establish a professional working relationship whereby Developer will provide website-related services to improve, enhance, and maintain Client's existing Squarespace website. Further work will also be done in regard to managed social media platforms, upon the consent of both Parties. The Parties acknowledge that the goal of this collaboration is to better represent the quality of the property, improve user experience, and support increased direct bookings and overall performance.

This Agreement reflects an ongoing collaboration and may evolve over time as Client's needs and priorities change.

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## **2. SCOPE OF SERVICES (GENERAL)**

Developer will provide website design, development, configuration, and advisory services as reasonably requested by Client and mutually agreed upon by the Parties. These services may include, but are not limited to:

- Website design and layout enhancements
- Functionality improvements related to bookings and payments
- Integration or coordination with third-party tools and platforms
- Content updates and structural improvements
- General website optimization and troubleshooting

Specific tasks, features, or enhancements may be discussed verbally or in writing (email or message) and incorporated into the ongoing collaboration without requiring a formal amendment to this Agreement, unless otherwise stated.

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### 3. PLATFORM & THIRD-PARTY SERVICES

Client acknowledges that the website operates on Squarespace and may be connected to third-party services such as booking engines, channel managers, pricing tools, review platforms, or payment processors.

Developer will make reasonable efforts to work within the technical limitations of these platforms. Developer is not responsible for outages, errors, pricing discrepancies, data sync issues, or policy enforcement caused by third-party services.

Client agrees to provide necessary access credentials, permissions, documentation, and timely responses as needed for Developer to perform services.

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### 4. CLIENT RESPONSIBILITIES

Client agrees to:

- Provide accurate content, policies, documents, and information
  - Review work and provide feedback in a timely manner
  - Maintain ownership and responsibility for business decisions, pricing, cancellation policies, and legal compliance
  - Ensure that all materials provided (including rental agreements, images, and reviews) are owned by or licensed to Client
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### 5. COMPENSATION

Compensation for services shall be as follows:

- **Rate / Fee Structure:** \$65/hour
- **Estimated Cost:** \$1,300 - \$1,950 for initial website development and implementation
- **Payment Schedule:** Weekly/Bi-Weekly (as decided by the Client)

Any additional work outside the originally discussed scope may be billed separately upon Client approval.

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## **6. TERM & TERMINATION**

This Agreement shall commence on the Effective Date and continue until terminated by either Party.

Either Party may terminate this Agreement with 30 days written notice. Client is responsible for payment of all services rendered up to the termination date.

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## **7. INTELLECTUAL PROPERTY**

Upon full payment, Client shall retain ownership of all final website content and materials created specifically for the Client. Developer retains the right to display the work in portfolios or promotional materials unless otherwise agreed in writing.

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## **8. CONFIDENTIALITY**

Both Parties agree to keep confidential any non-public business, technical, or financial information disclosed during the course of this collaboration.

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## **9. LIMITATION OF LIABILITY**

Developer shall not be liable for indirect, incidental, or consequential damages, including lost bookings or revenue.

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## **10. INDEPENDENT CONTRACTOR**

Developer is an independent contractor and not an employee, partner, or agent of Client.

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## **11. GOVERNING LAW**

This Agreement shall be governed by and construed in accordance with the laws of the State of Indiana.

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## 12. ENTIRE AGREEMENT

This Agreement constitutes the entire understanding between the Parties and supersedes any prior discussions or agreements. Any modifications must be made in writing and agreed upon by both Parties.

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## 13. SIGNATURES

### CLIENT

Name: Melissa Hathaway

Signature: \_\_\_\_\_

Date: \_\_\_\_\_

### DEVELOPER

Name: Jackson Ingenito

Signature: \_\_\_\_\_

Date: 12-16-2025

*Melissa Hathaway obo The Birdhouse on  
Meridian and Janice Baele*

*12-16-2025*